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First-in-the-nation ban on dangerous food additives

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A recent press release from the office of Assemblymember Jesse Gabriel stated AB 418 (California Food Safety Act) will be heading to Gov. Gavin Newsom's desk where it will either be signed into law or vetoed by Oct. 14.

If AB 418 is passed, it will prohibit five substances: Red Dye No. 3, brominated vegetable oil, titanium dioxide, propylparaben and potassium bromate. "The use of these chemicals has already been banned in the 27 nations in the European Union (EU), as well as many other countries due to scientific research linking them to significant health harms including cancer, reproductive issues and behavioral and developmental issues in children.

The bill was amended in the Assembly on April 13. It was amended again in the State Senate on May 26 and July 3. One amendment was to remove titanium dioxide which delayed the implementation of the bill until 2027, thereby giving food companies more than enough time to negotiate new contracts and phase in new recipes.

Major brands and manufacturers including Coke, Pepsi, Gatorade and Panera, have voluntarily stopped using the additives that would be banned under AB 418 because of concerns about their impact on human health.

Red Dye No. 3 is already banned by the FDA for use in cosmetics but is somehow still allowed in food.

AB 418 is now on its way to the governor's desk and if signed into law, will go in effect Jan. 1, 2027. The new law would "prohibit a person or entity from manufacturing, selling, delivering, distributing, holding or offering for sale, in commerce a food product for human consumption that contains any specified substance, including, among others, brominated vegetable oil and Red Dye 3. The bill would make a violation of these provisions punishable by a civil penalty to to exceed $5,000 for a first violation and not to exceed $10,000 for each subsequent violation, upon an action brought by the Attorney General, a city attorney, a county counsel or a district attorney.

Author of the bill, Assemblymember Jesse Gabriel said, "It is unacceptable that the U.S. is so far behind the rest of the world when it comes to food safety. The bill will not ban any foods or products - it simply will require food companies to make minor modifications to their recipes and switch to the safer alternative ingredients that are already used in Europe and so many other places around the globe."

Former Governor Arnold Schwarzenegger recently endorsed AB 418 and said, "I'm a small government guy. But I've also seen that sometimes, in a world where every big industry has an army of lobbyists and our kids have no one fighting for them, the government has to step in."

Director of good policy at Consumer Reports, Brian Ronholm said, "Unfortunately, the FDA hasn't taken action to protect the public despite the well-documented risks these harmful food chemicals pose to our health. We applaud California lawmakers for voting to ban these hazardous chemicals in food and urge Governor Newsom to sign this landmark legislation into law."

A social comment on CA AB 418 by Tina Marie Draco said, "This is a thoughtful and long overdue legislation. Freedom of choice does not mean allowing manufacturers to add toxins to our food. This list includes chemicals already banned in many countries ... In my opinion, I believe that giving companies until 2025 is plenty of time for them to adjust to the law."

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